

So two things....I think...after mulling it over, that the way for me to go about the 1983 claim against the officers and the county is to first file a bar complaint against the prosecutor for her frivolous claims supporting the administrative order of arrest. I feel like that's a kill shot, no way around it, she shot herself in the face with that one, and her position is legally - from any standpoint, indefensible. When I can establish that this is true, then we have the larger DA's office liable for maintaining the prosecution (as a side note - the attorney who wrote the motion in opposition of the motion to suppress is no longer on the case and defense counsel claims that "she quit"). I don't know if that means she is no longer working in the DA's office, or just off the case, but what I do know is that the DA is still pursuing a contempt conviction through a new assigned DA and no backtracking has been done to ameliorate her legally frivolous claims presented in the motion opposing suppression. So, we now have the DA's office and the DA as a whole being liable in a supervisory way for not controlling their deputy DA's and going to the court (even after she quit or was removed or whatever) and saying that this prosecution is continuing in the face of serious constitutional violations. Am I missing something that the DA is going to be able to present to justify their position. And the other thing is that because it was my home that was entered without my consent and after I'd asked for deputies to leave and grant my family privacy - then I have standing to bring the bar complaint on that fact alone but also because the information was used to revoke my bail, so I wanted to start the 1983 off with this bar complaint knowing that the bar is going to have to reconcile this lawyers conduct with the Rules of Professional Conduct and that they won't be able to. This is a Brady violation, fourth amendment violation, violation of candor, violation of what else?

no harm no foul also carries the damage of the violation of the fourth amendment. but, what's more is that deputies of the sheriff's office have come to my home several times in an attempt to execute the warrant. I was not home but during one of the incidents my daughters called me and told me that they were threatening to break down the door because my daughters are teenagers and officers thought my oldest was me, this terrified my children who were traumatized, but...the outstanding warrant has prevented me from gaining housing, from pursuing work (can't pass background check) and has held me hostage inside my home as I'm terrified to leave (and I want this expressed heavily in the bar complaint we're about to construct) because I spent an entire summer unable to do anything, the court has failed to acknowledge my motion to quash the warrant and is upholding the revocation of my bail and I currently have an FTA due to the violation of a release agreement hearing that they say I missed that I received no notice of, essentially, it is allowing the prosecution that stems from a misidentification to carry on rampantly.

I need a bar complaint against Jade Sawyer bar number 250555, poor thing has only been an attorney for 8 months...but oh well.

ok, so I am of a mind to actually include all my bar complaints into one. I'm thinking that making them one bar complaint will lend a better understanding of what's happening across cases. So here's the schpeel. I was arrested in June after being indicted for theft for taking someone's phone. The phone was returned and there was no damage to the person. I pushed for a civil compromise and the lawyer at the time was adamant that the alleged victim would not be decide whether they wanted to do a civil compromise. the annotations for that charge say that its not up to the victim.

counsel "a heavy burden rests on the government to demonstrate that the defendant knowingly and intelligently waived...his right to retained or appointed counsel"; in no way, indicated a waiver of this right and inquired several times if I was free to leave and denied the ability to leave, effectively placing me in custody and necessitating the reading of my rights.

Also, you and I briefly discussed the requirement that, post arrest (and release), my arraignment must be conducted within 96 hours. I understood that you stood to advocate for the state's failure to meet this requirement by implicating that I somehow agreed with the date set for arraignment by signing a release agreement. Several issues stem from that position for me. One, I had no way to control what date was printed on my release agreement, which was already selected upon my signing it- and which a date was set that already exceeded the 96 hour requirement. A waiver is the intentional relinquishment of a known right, but but the waiver must be voluntary, knowing, and intelligent and here there is no argument that any waiver being implied of this right was not voluntary (as my liberty interest in freedom was at stake), knowing (as I saw no language to that effect in the agreement, nor was it suggested) and intelligent (I was not informed that signing such agreement amounted to such a waiver). Second, although the release agreement does have language about waiving rights under certain circumstances, it in no way even alludes to a defendant having waived a right to any statutory time limitations as part of the agreement and in exchange for another liberty interest, their right to move about freely. Tertiary, it is well understood that my liberty interest and right to move around freely was curtailed with my having been brought into custody. To present a release agreement that waived my statutory right to be brought before a magistrate as an alternative to being in custody is unlawful, forcing me to choose between my right to be free or my right to present before a magistrate within a certain amount of time. It's my understanding that, typically, waivers of rights are predicated on a knowing relinquishment rather than mere acquiescence. Lastly, I'm not confident that the state is granting authority to withhold one right as ransom for another. AshLe' Penn <ashlepenn.ap3@gmail.com>
Sep 6, 2024, 1:55 PM
to Sunny, Amy, Nathan
Dear Ms. Sidman,
I am writing to you in good faith in what I hope will be a productive attempt to establish effective communication with your office regarding my charges against the officers that have been brought against me. It is my understanding from your office's last communication that it is my responsibility to reach out to your office regarding representation. However, despite my previous attempts, I have yet to receive a meaningful response or engage in a substantive discussion about my case whatsoever. It is imperative that the matters I bring here are addressed without further delay, as they have serious implications for my defense and overall legal standing.

Constitutional Violations and Concerns:

Most importantly, I endeavor to make your office aware of significant constitutional violations and other concerns implicating due process violations that occurred during the criminal investigation and resulting prosecution. These violations warrant being addressed immediately, as they directly impact the fairness and legality of the proceedings against me.

Failure to Administer Miranda Warnings: During the field investigation, as captured on officer worn body cam footage, I explicitly asked three times if I was free to leave, and each time I was denied

the question is satisfaction. if the person who is alleged to be injured can claim amounts that are still due them then they won't be able to say that they have received satisfaction for the amount stolen, but the question is...and only...has the amount stolen been satisfied. the state charged this as a felony and I looked up the IMEI number on the phone and the phone wasn't worth \$1000 so it should have been a misdemeanor. but still...I wanted a civil compromise. when I was arraigned for this charge the court asked me if I understood the charges and I stated I did not. I told the court that I'd received no discovery about the charge and would require more information before being able to enter any plea. the court set over the arraignment so that I could be provided discovery. the lawyer who showed up with me for the arraignment understood that I didn't have any information and she preserved my right to challenge the accusatory instrument. she claimed to be a limited scope ECR attorney. I was provided another limited scope attorney with harris velasquez gibbons and that attorney, joe beck, wanted to talk to me only about an ECR offer. He said that ECR was for people who wanted to resolve their cases quickly and that since I didn't want to ECR would not be appropriate for me. I took issue with that because I did want to resolve my case quickly but was more of a mind that instead of a guilty plea - that I was entitled to a civil compromise because the injured party could not state that there was anything left owing related to the amount stolen. He said he would reach out to the listed victim and ask if they wanted to agree to one. I took issue with that, again, stressing to him that this is not a felony case and therefore the state even offering me an ECR offer was according to their belief that they had a felony case and they don't, but what's more is that I shouldn't have to plead guilty because of the civil compromise statutes. Now this comes after the first setover arraignment where I specifically told the court that I needed more information before being able to enter a plea and the court granted that time. then dani carlson appeared at the setover arraignment and I still hadn't been provided discovery. prior to the hearing we talked for less than 5 minutes (never met or spoke with her before) and she was instructed to ensure that I did not plea and that there was no change in circumstance since the first setover. Well, incidentally, the court entered a not guilty plea on my behalf and claimed that the arraignment phase of the proceedings had been completed. The ECR offer was rejected by Dani Carlson and I never instructed her to do so. At the next hearing, I made the court aware that Ms. Carlson had rejected the ECR offer improperly as I did not grant her permission to do so and that I had been waiting on discovery. After this hearing...I spoke with the supervisor of harris velasquez gibbons and she told me that the court COULD enter a guilty plea and I mentioned the statute to her that states that at the conclusion of an arraignment that if a defendant REFUSES to plea then the court could enter a not guilty plea on their behalf. Well, the arraignment was never concluded because Carlson was supposed to have told the court that nothing had changed since the first setover and ensure that I did not enter a plea. Instead, she rejected the ECR claim and the court set a case management conference after being told that the plea was rejected improperly and that there shouldn't have been a plea entered because I didn't refuse to plea - I'd only requested and the court granted additional time to be provided discovery. The court didn't care and told me to talk to my lawyer. I told the court that the firm appointed to me wouldn't speak to me unless I wanted to accept the plea and that I'd been very communicative with them. the court muted me and told me the case management conference was set. so then after when I spoke with the supervisor of the appointed firm she told me that I'd recd a new trial attorney, Sidney Sidman, from her office. I was explaining to the supervising attorney that Dani Carlson rejected a plea without my permission and that it was an issue that no one would speak with me especially after talking to Joe Beck who was supposed to

the right to do so. Despite these requests, law enforcement officers failed to read me my Miranda rights at any point during the encounter. This is a clear violation of my rights under Article I, Section 12 of the Oregon Constitution as well as under the Fifth Amendment of the United States Constitution, as established in *Miranda v. Arizona*, 384 U.S. 436 (1966), which mandates that individuals must be informed of their rights when a reasonable person would not feel free to end the conversation and leave while being asked questions that could implicate them in a crime. The failure to provide these warnings renders any statements made during this time potentially inadmissible in court.

Suggestive Identification: From the body cam footage, it appears that when officers were taking statements from witnesses, there were significant issues with how identifications were handled. Specifically, it seems that while witnesses initially described me to law enforcement, they later identified another individual as the one responsible for taking the property. However, after officers quickly located me, it appears that no further investigation was conducted into the possibility that the other individual might have been the actual suspect. One witness was even informed by officers that the person they had identified was not me, which seemed to influence the witness's perception and insinuate that as I was the individual they had gotten identification from - that I was the suspect they were after. This process appears to be suggestive and may have unfairly influenced the witness's identification.

In Oregon, suggestive identification procedures are subject to scrutiny to ensure they do not violate a defendant's due process rights. For example, in *State v. Lawson*, 352 Or 724 (2012), the Oregon Supreme Court held that suggestive identification procedures that create a substantial risk of misidentification may violate due process. Similarly, *State v. Gable*, 267 Or App 472 (2014) highlights that such procedures can call into question the reliability of the identification. The case of *State v. White*, 334 Or 511 (2002) further emphasizes that identification procedures must be fair and not lead to a substantial risk of misidentification.

Given these precedents, I am concerned that the identification procedures in my case may have been unduly suggestive and could impact the fairness of the investigation and trial. I would appreciate your assistance in addressing this issue and evaluating its potential impact on my case. Unwarranted Seizure of Surveillance Footage: I have reason to believe that law enforcement did not secure a warrant prior to seizing video surveillance related to the alleged incident. If this is the case, it would constitute a violation of my Fourth Amendment rights, which protect against unreasonable searches and seizures. If law enforcement did secure a warrant prior to seizing this video surveillance, please forward me a copy of this warrant to this email. As it stands, though, the exclusionary rule, as established in *Mapp v. Ohio*, 367 U.S. 643 (1961), would require that any evidence obtained in violation of my Fourth Amendment rights be suppressed. I am requesting that your office investigate this matter thoroughly and take appropriate action to file a motion to suppress this evidence.

Irregularities in Warrant Execution: The warrant for my arrest was executed at an address that was not listed on the warrant. Furthermore, this warrant was somehow filed with the court before the grand jury indictment was filed with the court but the grand jury took place well before a warrant was issued. I was told that the true bill from the grand jury served as the affidavit in pursuing a warrant. How can this be if the true bill was filed with the court after the warrant was requested? Also, during my arrest and booking, I repeatedly requested to view the arrest warrant, yet law enforcement failed to provide me with a copy at any point. I am particularly concerned about the

be pursuing, begrudgingly, a civil compromise. Because I'd insisted that a civil compromise was not at the discretion of the listed victim that I'd expect him to convey exactly that and to be able to competently frame the inquiry as one where it was being asked what damages were remaining specifically related to the amount stolen, so, the supervising attorney and I went back and forth then she told me I had a trial attorney and with my trial attorney is the place that I would be able to voice all my concerns with the process to date. I hadn't yet been arrested for the theft case with target and the victim in this first case is entirely separate. this is an email I wrote to her: That said, I do hope that you have had an opportunity to become familiar with the particulars of this case. One noteworthy issue I haven't had an opportunity to discuss with you or your firm, but I'm compelled to convey is that at no point in my interaction with law enforcement was I ever read my Miranda rights at any time during which law enforcement prohibited me from leaving (literally detaining me) while still asking questions related to the matter at hand. I did not voluntarily, knowingly, or intelligently waive any rights but was not Mirandized as is required by law and law enforcement policy in the process of conducting an investigation. There were multiple officers present by which to maintain control of me in the case that I was to be taken to jail (which was exactly what was intended for me that day but the officers said something about not having any evidence). Even though I was not taken to jail that day, I did inquire if I was free to go several times and I was told in response, each time, that I was not. It is my understanding that in deciding whether a person's encounter with police becomes compelling, thus triggering a Miranda warning requirement, courts consider a host of factors, including: (1) the location of the encounter; (2) the length of the encounter; (3) the amount of pressure exerted on the defendant; (4) the defendant's ability to terminate the encounter; (5) the number of officers and police cars at the scene; (6) the use of physical force or confinement during questioning; (7) and the demeanor of the investigating officer. Although the investigating officer was amicable, it was no less an investigation and an interrogation where I was not read my Miranda rights at any time during the encounter. Washington County Sheriff's Office has defined several notable definitions in its policy and procedure manual related, namely, to the terms that define when a law enforcement officer is required to read an individual their Miranda rights (procedure manual (Policy #1506-R03)):

Custody. Actual imprisonment or physical detention of an individual by a law enforcement officer, or other compelling circumstances where the individual is not free to leave or does not feel free to leave. Deputies will be cognizant of circumstances in which a person might feel they are not free to leave or that they are "in custody" even though no arrest has been made. Warnings should be read if those circumstances are evident.

Since police must give Miranda warnings to a person who is in full custody OR, in my situation, in circumstances that create a setting which judges would and officers should recognize was quite compelling; especially considering that I asked to terminate the encounter at least three times, I would like my statements to police suppressed. LEOs are directed to read Miranda warnings to detainees in circumstances where they intend to question a suspect, and prior to said questioning...and I was not read my Miranda rights but detained as per the officer questioning me that day, thus, I would like for any statements I made to the police suppressed. I'm hoping that a motion to suppress my statements can be realized prior to the case management conference next week. The US Supreme Court has stated that if a suspect makes a statement in the absence of

legality of executing a warrant at an incorrect address and the implications this may have for the validity of the arrest. I would also be very interested to come into the knowledge of how officers were able to execute the warrant at the address they did, how did they come about this information? These issues are valid and I have a right to be apprised of processes by which this information came into the hands of law enforcement. During the night of my arrest, I was also told while in my home that I was under arrest, but, after being handcuffed and placed in the back of a patrol car - I was told that I was only being detained for purposes of confirming the warrant. Officers' decision not to present the warrant upon my request and their informing me through my closed door that I was under arrest only to later tell me that I was only being detained is highly unusual and warrants further inquiry. Put plainly, it appears that there may be some impropriety in the initiation of this prosecution which should be addressed through a motion to dismiss the charges based on these irregularities; this is critical and I look forward to actionable steps being taken to secure any relief from rights violations in this case.

Motion to Dismiss for Insufficiency of Pleading:

In addition to the aforementioned issues, I would like to highlight deficiencies in the indictment itself. The indictment, as currently filed, does not state a claim for which relief can be granted.

Specifically:
Missing Allegation of a Culpable Mental State: The indictment fails to include any allegation of a culpable mental state, which is a required element in criminal charges. Without this, the indictment cannot support the charges against me.
Failure to Specify the Property Taken or Lack of Owner's Consent: The indictment does not specify the property alleged to have been taken. It also does not include an allegation that the property was taken in the absence of the owner's consent, which is essential to sustain a charge of theft.
No Allegation of Intent to Permanently Deprive the Owner: The indictment fails to allege that I intended to permanently deprive the owner of the property, another critical element necessary for a valid theft charge.

Non-Compliance with Statutory Requirements: While the indictment states that the charge is theft, the statute cited does not include the definition of theft. The definition of theft is found in a separate statute, which means the indictment does not comply with the statutory requirements for a legally sufficient pleading.

Given these issues, I request that your office prepare and file a motion to dismiss the charges based on the insufficiency of the indictment. I believe that these deficiencies will render the indictment unable to survive a motion to dismiss, as it fails to meet the basic statutory and constitutional requirements for a criminal charge.

Violation of ORS 135.010 - Failure to Arraign Within 96 Hours:

I must also bring to your attention the state's failure to comply with ORS 135.010, which requires that arraignments are to occur no more than 96 hours after their arrest. Specifically, this statute provides that:

" Except for good cause shown or at the request of the defendant, if the defendant is in custody, the arraignment shall be held during the first 36 hours of custody, excluding holidays, Saturdays and Sundays. In all other cases, except as provided for in [ORS 133.060](#) (Cited person to appear before magistrate), the arraignment shall be held within 96 hours after the arrest."

My arraignment did not occur within the established statutory timeframe of 96 hours following my arrest. The release agreement I signed at the time of my release does not communicate any waiver

of my right to timely arraignment as required by ORS 135.010. Therefore, the state's failure to promptly arraign me constitutes a procedural violation that may further invalidate the legal process surrounding my arrest and prosecution.

This procedural failure by the state to comply with ORS 135.010 is another reason warranting a motion to dismiss. The right to timely arraignment is a safeguard designed to ensure that no person remains indefinitely in legal limbo, and this violation undermines the fairness of the process. I trust that your office will investigate this matter and pursue the appropriate legal remedies, including a motion to dismiss, based on the state's failure to adhere to this statutory requirement.

Requests for Information and Next Steps:

In addition to the above concerns, I have several requests for information that are crucial to my ability to prepare an effective defense:

Access to Grand Jury Transcripts: It is my understanding that the grand jury transcripts should now be available. Under *Brady v. Maryland*, 373 U.S. 83 (1963), I am entitled to any exculpatory evidence, which includes these transcripts. I am formally requesting immediate access to review them, as they are essential to understanding the basis of the charges against me and preparing my defense.

Complete Discovery Materials: Pursuant to ORS 135.815, the prosecution is required to disclose all evidence relevant to the charges against me. This includes, but is not limited to, police reports, witness statements, and any other material evidence that the prosecution intends to use at trial. I am requesting that your office provide me with all discovery materials currently in your possession. Additionally, if there is any outstanding discovery that has not yet been received from the district attorney's office, I would like to know what steps are being taken to obtain it and when I can expect to have access to it.

Status of Civil Compromise: Another important matter that has not been addressed is the status of the civil compromise that Mr. Beck was pursuing on my behalf. From what I understand, this compromise was nearly finalized before I was reassigned to another attorney within your office. Under ORS 161.705, the legislature has authorized the compromise of all Class C felonies that could be punished as misdemeanors. The power to compromise rests with the court, and "satisfaction" requires only repayment of the amount alleged to have been stolen, not the consent of the injured party, as established in *State v. Dumond*, 270 Or 854, 530 P2d 32 (1974). Since the alleged injured party has already recouped their property, the repayment amount in this case is \$0. I am requesting an update on the status of this civil compromise and what actions your office is taking to ensure its completion.

Urgent Need for Communication:

Lastly, I must address the critical issue of communication. At my last hearing, I was explicitly informed by Ms. Sidman that she would not speak to me, Mr. Beck refused to speak with me unless I agreed to plead guilty for ECR purposes and Ms. Carlson failed to respect my wishes related to a plea and rejecting the ECR offer before the charges were made sufficiently clear to me. At our first interaction, I was informed by Ms. Carlson when she appeared with me that first time that she was going to be sure to relay to the court that I was not pleading (at all) during that hearing. She failed to communicate with me that, somehow, my arraignment had been concluded with a not guilty plea being entered on my behalf and later an ECR offer being rejected - all without a single appointed attorney in your office speaking with me about these charges to provide constitutionally sufficient counsel. This is not only unacceptable but also a violation of my Sixth Amendment right to effective

assistance of counsel, which includes the right to communicate openly with my attorney about my case. Without adequate communication, I am unable to make informed decisions about my defense, understand the nature and cause of the charges against me, explore potential defenses and proactively pursue remedies that must be preserved at the pre-trial, even pre-arraignment phases.

Given the serious nature of the issues at hand, I am requesting that you or another attorney in your office respond to this email promptly and arrange a time to discuss my case in detail as well as discuss the motions to suppress and dismiss, respectively. I must insist that these matters be addressed immediately to avoid any further prejudice to my defense.

I appreciate your prompt response and look forward to expediently resolving these issues in a manner that upholds my rights and ensures a fair legal process.

Thank you for your attention to these urgent matters.

Regards,

AshLe' Penn

her response: Hello,

I appreciate you taking the time to reach out. I see that you scheduled a phone appointment for Wednesday and we can discuss some of these issues at that time. You are also welcome to call our office to schedule a time to come in to review grand jury recordings since we are not allowed to provide copies to you directly. There is a lot of points to cover from your email, and we can discuss them in greater depth during a meeting, but here are some initial notes:

Miranda issue: This is an issue that will be relevant if your case goes to trial. It is certainly something that we can and will look into. The remedy for a Miranda violation is suppression of statements made in violation of Miranda, so the state would still be able to present all other evidence against you at trial.

Suggestive identification: Like the Miranda issue, this is something that we can investigate for trial purposes.

Surveillance footage: A warrant is not needed to obtain information or evidence that is offered freely by its owner, so this is a non-issue.

Warrant execution: Again, this is something that we could investigate, but there are no clear statutory or legal issues with the execution of the warrant that I'm aware of.

Insufficiency of pleadings: The pleadings in this case are sufficient. Plain language is statutorily acceptable in pleadings and nothing in your charging instrument is outside of what's required by ORS 132.540 or ORS 132.550.

Failure to arraign within 96 hours: I understand your position on this. I do not believe that there is any remedy available to you even if there is a violation. More on that below.

Grand jury recordings: If you would like to listen to grand jury, you will need to schedule an appointment to come into the office. We are not permitted to make or distribute copies of those recordings.

Additional discovery: We can provide you with all the written discovery in your case. It will need to be redacted to remove the identifying information of the alleged victim (per statute) but I'll ask my legal assistants to work on that and email those to you as soon as the redaction is done.

Civil compromise: I have requested assistance from a private investigator (he is paid through

Oregon Public Defense Services funds) to facilitate a civil compromise. I understand that the alleged victim in this case was onboard with a civil compromise at one point but she has since not been responsive to contact so I'm hopeful that some additional assistance will allow us to get this done.

Communication: At the time of your hearing, you were late and I was attempting to make sure that you did not receive a warrant or a sanction from the court. I was not able to go into the hallway to talk with you and the courtroom was not the appropriate place for a discussion. After the hearing, you informed me that you were going to make a complaint against me, at which point I did not think there was any productive conversation to be had. You are welcome to make any complaints that you feel are warranted to the appropriate regulatory bodies, but I will continue to do my job in the way that complies with my obligations as a member of the Bar and my duties as an officer of the court.

The common thread with all the issues that you cited is that there are basically two questions: 1) Was there a statutory or constitutional violation? 2) What is the remedy? For the sake of example, let's say that your arraignment did not comply with ORS 135.010. There is no statutory remedy, so there is no clear pathway to dismissal. The court would not simply dismiss because there was a lack of compliance, they would instead inquire whether the failure to comply was such an egregious violation as to deprive you of due process. There are cases involving significant non-compliance with this statute that have not been dismissed because they were not found to constitute significant violations of due process. With dismissal in general, there is a big difference between dismissal with prejudice and dismissal without prejudice. When a case is dismissed due to a procedural issue (i.e. failure to comply with certain statutory time limitations), the remedy is dismissal without prejudice, which means that the case can be re-initiated without triggering double jeopardy and the clock starts over. I do not think that this would be beneficial to you in any way, since it would likely result in another warrant and another arrest on the same charges. Just something to keep in mind when you're talking about these procedural issues.

I can assure you that if there were a way for your case to be dismissed with prejudice, I would pursue that immediately. It is not in my interest to prolong a case unnecessarily (not to mention the fact that it's contrary to my duty as a member of the Bar). I know that you have been skeptical of my interests here, so I want to make that very clear.

Thanks,

Sunny Sidman

so that's just the beginning...and did you not also register the fact that she listed back to me a list of things involving miranda, privacy, etc. that also may have issues. But this is the same lawyer who was appointed to me the day that I was arrested at target, she sent me an email with the new charges (involving target that I was initially charged by DA information and so therefore was entitled to a preliminary hearing) and said that they would no longer be pursuing a civil compromise with the initial case because of the new charge. her email: Hello,

I wanted to reach out since I received notice of your new Theft I case. Now that there is a new case, we are no longer going to be able to pursue a civil compromise. There is an offer in your case that would allow you to resolve both Theft I charged as misdemeanors with the Possession of Methamphetamine charge being dismissed. I will be out of the office this week and another attorney will be covering your preliminary hearing on Thursday. I'm attaching a copy of the offer, which would require you to plead guilty to two counts of Theft II (as lesser included offenses) which are misdemeanors. It's important to note that this offer will not remain open if you do not set for a change of plea, so this is not a resolution that will be available to you if this case proceeds with the current trial dates. In other words, you would be going to trial on the three counts, two counts of Theft I (felony) and one count of Possession of Methamphetamine (misdemeanor).

Thanks,

Sunny Sidman

the problem with this is when we showed up for the next appearance it was supposed to be a change of plea hearing because I'd previously waived my right to a preliminary hearing the week prior (my counsel was not there but a substitute attorney from the office appeared with me and couldn't answer my questions and told me that it was best that I waived my preliminary hearing which I did), in the week that followed that waiver, I'd received discovery and videos of the theft of another black girl who they were saying was me! So at the next hearing, I unequivocally rescinded my preliminary hearing waiver in open court and required that the court conduct a preliminary hearing so that I could challenge these charges. This rescinding of my waiver was overshadowed by my then attorney sunny sidman's motion to withdraw due to a breakdown in communication she claimed by email: Good morning,

At this point, based on the clear breakdown in communication here, your demands that I file motions that would be frivolous, and your repeated threats to make Bar complaints against me, I am no longer able to represent you. I will file a motion to withdraw. Our appointment tomorrow is cancelled. You will receive notice of the withdrawal hearing when one is set and you will have the opportunity to be heard at that time.

Thank you,

Sunny

She then went to court and told the court a separate reason for the withdrawal being under 1.16 i believe (could be mistaken), but the issue is that the state told the court that the attorneys wanted to have an in camera discussion about my attorney's withdrawal and so the state, my lawyer and the judge (colburn) went into chambers and about 10 minutes later comes back and says he's granting the withdrawal. I objected and told him that she refuses to speak with me and that she I wasn't sure that she had adequately represented the facts to the court as to the basis for her withdrawal (being that she told me something other than what she told the court was her basis for withdrawing), the court asked me why in the world I would want a lawyer to proceed if I thought she was working to result in a conviction. I told the court because the court had the authority to order

her to provide adequate assistance and the court declined and allowed the withdrawal. I dont know what was said in camera but I only know that the state was present. I told the court that her failure to investigate while I claimed absolute innocence was improper and that, in open court, with all parties present, that I was rescinding my waiver of preliminary hearing and that the state would be required to provide me one (the waiver existed for about a week between hearings), the court appointed me counsel the same day, which would be my second attorney, anna lasher. Anna had a meeting with me for over an hour. She'd inherited the first case about the cell phone and the civil compromise which she said halfheartedly that she would pursue. The second theft case with target was newer, however, and that's what we mainly discussed. She told me police didn't have probable cause to stop me outside of target and that the state had improperly joined the drug charge and the theft charge without establishing sufficient relation to one another. We talked about the misidentification at length. This was about october and I played her a video of the hearing where I rescinded my waiver and she told me that a written motion was usually required for the court to rescive that and I mentioned the statute that stated that once a preliminary hearing is requested that the state had 30 days to hold that hearing. It wasn't until December that she filed a motion to officially acknowledge that I'd rescinded any waiver of prelim. It was also in december that Rambin admitted in a police report that he'd misidentified me, then went back post arrest and curated new evidence involving several other incidents not related to the incident I was arrested for to resuscitate the prosecution for which he'd arrested me. on January 14 the state held a grand jury and withheld all the information from the grand jury related to my arrest and only presented the curated evidence gathered after admitting to misidentifying me. the grand jury indicted me and then I was arraigned (again, because i was arraigned immediately after arrest on 9/19/24) on the true bill. I'd asked my attorney how they are arraigning me again on the same charge (because the charge was not dropped it was only swapped out for the new set of incidents (about 5-6 dates)). Anna lasher told me outside the courtroom that it was a superceding indictment but when I went into the courtroom she told the court that it was a standard indictment. This was odd to me. At another hearing, before we started, I'd asked her about the grand jury testimony and she told me that the arresting officer had lied during grand jury and that the state had swapped out the complaining witness for another target employee who wasn't there the night of my arrest. The new testifying witness claimed it was her that contacted police, and arresting officer also changed his narrative from his sworn affidavit supporting a warrantless arrest the night of my arrest, to confirm this version. The employee also stated that police were there at target the night of my arrest due to an unrelated incident - which is wholly untrue because the sworn affidavit stated that officers came specifically for me thinking that I was someone else who'd committed a theft the day before. It was odd that after the grand jury, text messages appeared in the record that are purportedly between the officers and target about my being in the store and yet the grand jury testimony stated that officers were there on an unrelated matter. Its my belief this was said to accomplish a complete concealment of the racially motivated wrongful arrest and the state did not correct this false testimony or even question maintaining the charges against me. at the close of the second arraignment an omnibus hearing was scheduled and I think you're aware of what happened at that hearing? My attorney filed a motion to dismiss highlighting the discrepancies in testimony (but never mentioned even once that this is perjury and that the prosecutor was responsible for allowing false testimony) but only mentioned the issues as if in passing. So then! the omnibus was converted to a motion to withdraw because i was curious about how my lawyer didn't claim perjury

etc. She wrote a motion claiming RPC 1.16 and then during the hearing claimed 1.7, the court asked if it was related to another client and she said no that it was another issue of the lawyer, the state said, again, that an in camera proceeding was necessary and the judge this time (thompson) said if he was going in camera the state would not be permitted, he conducted his in camera proceeding after denying me access to the hearing and came out and told me that my relationships with my attorneys was inappropriate and the facts on the record suggested that I get upset when my lawyers don't do what I want them to. I objected to this and he said I don't get to object and that it didn't matter that I'd been misidentified and my lawyer wouldn't argue that. he told me that the law was no in my favor after pulling my cases and this is before any evidence was presented, told me that I wouldn't be prejudiced from not being able to argue the issues submitted in my demurrer prior to the converted hearing, put me on an unrepresented list where I remain today, then...the warrant issue happened with barry and the entry into my home. the court held a show cause for my bail and revoked my bail and issued a warrant on this case. SO! do you see now why I would want to include each lawyer in my bar complaint?

pk, but a few other things, so for starters that preliminary hearing was requested in open court and the court had proper notice that one was being requested even tho my lawyer didn't acknowledge my rescinded waiver until december, but on that note - her motion to dismiss/supress does mention the fact that the 30 days wasn't adhered to and the court...after telling me that I wouldn't be prejudiced at all from not having an omnibus hearing about two months later without a response from the state and without holding a hearing - denied my attorneys motion to dismiss/supress, but what's more is that the morning of the omnibus hearing I asked to speak with anna lasher and we step into the hallway and I asked her why a demurrer had not been filed as we'd agreed (she'd only filed a motion to dismiss after I'd worked so hard to preserve the right to a demurrer). She told me they were the same thing. i told her i knew that she knew they weren't. i also asked as my investigator was also standing there (after getting into a big argument with the both of them the days prior) how if he'd spent hours with the information as he said he did, how they missed the fact that the state had double counted items in loss valuations to ensure a felony threshold which they had to do after removing the wrongful arrest totals because it wasn't me, so they had to take out the nearly 1k in merchandise from the other black girl and in order to reach a felony threshold they double counted items and my attorney even acknowledged that the amounts changed after the night of my arrest to be increased but doesn't say exactly why, they didn't want to answer me in the hallway and so we went into the hearing with thompson and did the in camera thing, she was permitted to withdraw and I remain unrepresented today, the demurrer was filed prior to any other motion being heard and the court told me i wouldn't be prejudiced but denied her motion to dismiss/supress that she said was the same as a demurrer, the court has ignored my demurrer and my motion to quash the warrant due to unconstitutional entry into my home, just ignored them, demurrer filed day of converted omnibus 4/29 and motion to quash filed 7/1

today is 10/10. So, in the bar complaint we now know the DA's office knew about the misidentification and concealed it and we know they know because they charged me with it initially. but after the admission from rambin and the concealment in the grand jury they withheld any information related to the misidentification arrest and acted as if the post arrest curated evidence is what they had all along. so they knew enough NOT to charge me with the other black girls crime in the new set of charges that they are acting like aren't new and what was happening all along. So they won't be able to claim ignorance. but, then when deputies entered my home on the administrative order of arrest then they tried to construe that to be valid (same DA's office - different DA)...but at no time has this same office stepped up to stop clear constitutional violations that are egggregious and on the record! they knew that i'd been misidentified. they knew that officers didnt have a warrant. yet they stand by and continue to prosecute while there's an active warrant for my arrest and i can't find work and i can't find housing. they just want convictions.

before we just start swinging in the dark, I just relayed to you in separate, hopefully palatable, sections the workings of this case. i want you to establish a comprehensive and exhaustive timeline of the issues in this case. the timeline should reflect each of the violations that occurred by either side's attorney. Then we will hone and fine tune that timeline and take it to establish an outline of the bar complaint.